

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.372	0.071	0.001	0.228	0.266
Trial Fee-Shifting	0.363	0.106	0.001	0.213	0.339
Complete Fee-Shifting	0.469	0.020	0.058	0.407	0.166